

Before the *First Hearing*

What a council should know, and ask, when a data center comes to town

This briefing collects what researchers, regulators and pollsters have published about data centers, in their own words, and the questions we suggest asking before the first hearing.

How fast demand is growing

U.S. Department of Energy: “The report finds that data centers consumed about 4.4% of total U.S. electricity in 2023 and are expected to consume approximately 6.7 to 12% of total U.S. electricity by 2028.”¹

Lawrence Berkeley National Laboratory's 2025 update: “This report updates the 2024 Data Center Energy Usage Report (2024 Report) and estimates that data centers could account for 11.8% of total U.S. electricity by 2030.”²

The North American Electric Reliability Corporation (NERC): “Summer peak demand is forecast to grow by 224 GW, a more than 69% increase over the 2024 LTRA forecast with new data centers for artificial intelligence and the digital economy accounting for most of the projected increase.”³

How residents are reacting

Organized opposition

“at least 75 projects worth approximately \$130 billion disrupted by local opposition”⁴

What they raise

“some common themes are higher utility bills, water consumption, noise, impact on property value, and green space preservation.”⁵

The polling

“Seven in 10 Americans oppose constructing data centers for artificial intelligence in their local area, including nearly half, 48%, who are strongly opposed.”⁶

Pew Research Center: “Far more say data centers are mostly bad than good for the environment (39% vs. 4%), home energy costs (38% vs. 6%) and the quality of life for those nearby (30% vs. 6%).”⁷ And: “More adults say data centers are mostly good than bad for local jobs (25% vs. 15%) and local tax revenue (23% vs. 12%).”⁷

Who pays for the power

Kansas regulators and Missouri lawmakers have acted. The Kansas Corporation Commission: “The contract term will be a minimum of 12 years, plus an optional load ramp period of up to 5 years”⁸, and “any system upgrades that are necessary solely to serve the new/expanded customers will be directly assigned to the new/expanded customer”⁸ Missouri Senate Bill 4 calls for tariffs that “prevent other customer classes' rates from reflecting any unjust or unreasonable costs arising from service to such customers”⁹

Harvard Law School's Environmental and Energy Law Program: “the paper explains how rate structures, as well as secret contracts between utilities and data centers, could be transferring Big Tech's energy costs to the public”¹⁰

What communities are doing about it

“of 42 local ordinances and ballot measures reviewed, 33 of them were passed in 2026 alone, compared with two in 2024 and six in 2025”¹¹ The Federation of American Scientists' advice: “Determine up front if you want them, where you want them, and under what conditions you will take them.”¹¹

Questions we suggest asking before the first hearing

1. **Does our code even define this use?** If it's allowed by right, the first application sets the rule for every one after it.
2. **Who pays for the power and the lines?** Ask the utility which large-load rules apply, and who pays for upgrades built only for this customer.
3. **What will neighbors actually experience?** Noise, water, traffic during construction, and backup generators. Get plain answers in writing.
4. **Who speaks for the town?** A comment period hears the loudest people. A representative survey hears everyone.
5. **What can this process still change?** Say it before the first meeting, so nobody arrives expecting to undo a done deal.
6. **Is the council ready for the room?** Know which questions have answers, and where the record is thin.

The Nash Group is the third party in the middle. We don't argue for or against a project, our fee never depends on the outcome, and we never work both sides of the same one. More sources: nashdg.com/national-data-center-resource-library. To talk: tnash@thenashdevelopmentgroup.com, (816) 213-4461.

Sources

1. U.S. Department of Energy. DOE Releases New Report Evaluating Increase in Electricity Demand from Data Centers. December 20, 2024. <https://www.energy.gov/articles/doe-releases-new-report-evaluating-increase-electricity-demand-data-centers>
2. Lawrence Berkeley National Laboratory, sponsored by U.S. Department of Energy (record hosted by DOE Office of Scientific and Technical Information, OSTI). United States Data Center Energy Usage Report: 2025 Update. 18 June 2026 (Technical Report date on OSTI record). <https://www.osti.gov/biblio/3374245>
3. North American Electric Reliability Corporation (NERC). Long-Term Reliability Assessments (2025 Long-Term Reliability Assessment). 2025 assessment; report file listed as modified 02/24/2026. <https://www.nerc.com/our-work/assessments/long-term-reliability-assessments>
4. Data Center Watch. Q1 2026: Data Center Watch Report. undated on page; research timeline printed as January 2026 - March 2026. <https://www.datacenterwatch.org/q1-2026>
5. Data Center Watch. \$64 billion of data center projects have been blocked or delayed amid local opposition. undated on page; research timeline printed as May 2024 - March 2025. <https://www.datacenterwatch.org/report>
6. Gallup. Americans Oppose AI Data Centers in Their Area. May 13, 2026. <https://news.gallup.com/poll/709772/americans-oppose-data-centers-area.aspx>
7. Pew Research Center (John Gramlich, Brian Kennedy, Colleen McClain, Galen Stocking). How Americans view data centers' impact in key areas, from the environment to jobs. March 12, 2026. <https://www.pewresearch.org/short-reads/2026/03/12/how-americans-view-data-centers-impact-in-key-areas-from-the-environment-to-jobs/>
8. Kansas Corporation Commission (KCC). KCC approves large load rate plan with consumer protections. November 6, 2025. <https://www.kcc.ks.gov/news-11-6-25>
9. State of Missouri. Senate Substitute No. 2 for Senate Bill No. 4, 103rd General Assembly 2025 (Truly Agreed To and Finally Passed). 2025 (First Regular Session, 103rd General Assembly). <https://www.senate.mo.gov/25info/pdf-bill/tat/SB4.pdf>
10. Harvard Law School Environmental and Energy Law Program, Electricity Law Initiative (Eliza Martin and Ari Peskoe). Extracting Profits from the Public: How Utility Ratepayers Are Paying for Big Tech's Power. March 5, 2025. <https://eelp.law.harvard.edu/extracting-profits-from-the-public-how-utility-ratepayers-are-paying-for-big-techs-power/>
11. Federation of American Scientists (FAS), State & Local Innovation. Before Breaking Ground: A Local Government Guide To Better Data Center Policy And Community Benefits. September 10, 2026. <https://fas.org/publication/before-breaking-ground/>